

AMENDED IN ASSEMBLY JULY 1, 2024

AMENDED IN SENATE MARCH 20, 2024

SENATE BILL

No. 1381

**Introduced by ~~Senator McGuire~~ Senators Wahab and Ashby and
Assembly Member Zbur
(Coauthor: Senator Gonzalez)**

February 16, 2024

~~An act to amend Section 13899 of the Penal Code, relating to crimes.~~
*An act to amend Section 7599.2 of the Government Code, to amend
Section 11352 of, and to add Section 11369 to, the Health and Safety
Code, and to amend Section 487 of, and to add Sections 490.3 and
666.1 to, the Penal Code, relating to crimes, and calling an election,
to take effect immediately.*

LEGISLATIVE COUNSEL'S DIGEST

SB 1381, as amended, ~~McGuire Wahab. Property crimes: regional
property crimes task force. Crime.~~

*(1) Existing law classifies controlled substances into 5 schedules
and places the greatest restrictions and penalties on the use of those
substances placed in Schedule I. Existing law classifies the drug fentanyl
in Schedule II. Existing law makes transportation and sales of specified
controlled substances, including narcotics, punishable by imprisonment
in a county jail for a period of 3, 4, or 5 years.*

*This bill would make the sale, furnishing, administration, or giving
away of any mixture of controlled substances containing fentanyl or its
analogues, knowing that fentanyl or its analogues are present within the
mixture, unbeknownst to the purchaser or recipient, and without
disclosing that presence to the purchaser or recipient a felony
punishable in county jail for 4, 5, or 6 years.*

This bill would require the court to advise a person who is convicted of, or who pleads guilty or no contest to transporting, importing, selling, or administering a controlled substance containing fentanyl or a fentanyl analog, or offering or attempting to do so, of the danger of selling or administering illicit drugs and counterfeit pills and that, if a person dies as a result of that action, the defendant can be charged with homicide. The bill would prohibit the advisory from being used as evidence in the prosecution of a juvenile in juvenile court.

(2) Existing law, the Safe Neighborhoods and Schools Act, enacted as an initiative statute by Proposition 47, as approved by the electors at the November 4, 2014, statewide general election, makes the theft of money, labor, or property petty theft punishable as a misdemeanor, whenever the value of the property taken does not exceed \$950. Proposition 47 requires shoplifting, defined as entering a commercial establishment with the intent to commit larceny if the value of the property taken does not exceed \$950, to be punished as a misdemeanor. Under existing law, if the value of the property taken exceeds \$950, the theft is grand theft, punishable as a misdemeanor or a felony. Existing law authorizes the aggregation of the value of the money, labor, real property, or personal property stolen to determine grand theft if the acts are motivated by one intention, one general impulse, and one plan.

This bill, instead, would authorize aggregation of the value of property stolen through one or more instances of theft or shoplifting into a single act that meets the definition of grand theft when the acts occurred within 3 years of each other.

This bill would authorize a person to be charged with a misdemeanor or a felony if the current offense is petty theft or shoplifting and the person has 2 or more convictions for specified offenses, including petty theft, shoplifting, or receiving stolen property, within the prior 3 years. If a person has been punished under that provision previously within 3 years, the bill would make a new conviction for petty theft or shoplifting punishable as a felony.

(3) The Safe Neighborhoods and Schools Act additionally established the Safe Neighborhoods and Schools Fund, a continuously appropriated fund, which is funded by savings that accrue to the state from the implementation of the act. Existing law requires the Controller to disburse moneys from the fund for various purposes, including, among others, 25% to the State Department of Education to administer a grant program to public agencies aimed at improving outcomes for public school pupils, and 65% to the Board of State and Community

Corrections to administer a grant program to public agencies aimed at supporting mental health treatment, substance abuse treatment, and diversion programs for people in the criminal justice system.

This bill would instead require 15% of the moneys to go to the State Department of Education program and 75% to the Board of State and Community Corrections program.

(4) This bill would make the provisions of the bill severable.

(5) This bill would place the substantive provisions of the bill on the ballot at the November 5, 2024, statewide general election. The bill would provide that, if another initiative or measure relating to the same subject appears on the same statewide ballot, all of the provisions of the other measure or measures shall be deemed to be in conflict with this measure and, in the event this measure receives a greater number of affirmative votes than a measure deemed to be in conflict with it, would require that the provisions of this measure prevail in their entirety, and the provisions of the other measure or measures shall be null and void.

(6) This bill would declare that it is to take effect immediately as an act calling an election.

~~Existing law, until January 1, 2026, requires the Department of the California Highway Patrol to coordinate with the Department of Justice to convene a regional property crimes task force to identify geographic areas experiencing increased levels of property crimes, including, among other property crimes, organized retail theft and vehicle burglary, and assist local law enforcement with resources, such as personnel and equipment.~~

~~This bill would include the sale of stolen goods as a property crime to be considered in the identification of geographic areas experiencing increased levels of property crimes.~~

Vote: majority. Appropriation: no. Fiscal committee: ~~no~~ yes.
State-mandated local program: no.

The people of the State of California do enact as follows:

- 1 SECTION 1. *The Legislature and the people find and declare*
- 2 *all of the following:*
- 3 *(a) Fentanyl has become a menace to all Californians,*
- 4 *threatening the lives of our loved ones and targeting our children.*
- 5 *(b) The United States is facing a fentanyl crisis. The United*
- 6 *States Drug Enforcement Administration has found that 6 of every*

1 10 pills with fentanyl contain a potentially lethal dose, and fentanyl
2 is now the leading cause of death for adults under 45, posing a
3 deadly risk to the next generation of Californians.

4 (c) Fentanyl is deadly, and it is maliciously being mixed in with
5 other drugs without users' knowledge.

6 (d) Organized crime rings are a scourge on California
7 businesses and consumers and must be held accountable.

8 (e) Strengthening laws against fentanyl trafficking and retail
9 theft will protect the public safety of all Californians, restoring
10 faith in the legal and judicial system.

11 SEC. 2. Section 7599.2 of the Government Code is amended
12 to read:

13 7599.2. Distribution of Moneys from the Safe Neighborhoods
14 and Schools Fund.

15 (a) By August 15 of each fiscal year beginning in 2016, the
16 Controller shall disburse moneys deposited in the Safe
17 Neighborhoods and Schools Fund as follows:

18 (1) ~~Twenty-five~~ Fifteen percent to the State Department of
19 Education, to administer a grant program to public agencies aimed
20 at improving outcomes for public school pupils in kindergarten
21 and grades 1 to 12, inclusive, by reducing truancy and supporting
22 students who are at risk of dropping out of school or are victims
23 of crime.

24 (2) Ten percent to the California Victim Compensation Board,
25 to make grants to trauma recovery centers to provide services to
26 victims of crime pursuant to Section 13963.1 of the Government
27 Code.

28 (3) ~~Sixty-five~~ Seventy-five percent to the Board of State and
29 Community Corrections, to administer a grant program to public
30 agencies aimed at supporting mental health treatment, substance
31 abuse treatment, and diversion programs for people in the criminal
32 justice system, with an emphasis on programs that reduce
33 recidivism of people convicted of less serious crimes, such as those
34 covered by this measure, and those who have substance abuse and
35 mental health problems.

36 (b) For each program set forth in paragraphs (1) to (3), inclusive,
37 of subdivision (a), the agency responsible for administering the
38 programs shall not spend more than 5 percent of the total funds it
39 receives from the Safe Neighborhoods and Schools Fund on an
40 annual basis for administrative costs.

1 (c) Every two years, the Controller shall conduct an audit of the
2 grant programs operated by the agencies specified in paragraphs
3 (1) to (3), inclusive, of subdivision (a) to ensure the funds are
4 disbursed and expended solely according to this chapter and shall
5 report ~~his or her~~ *their* findings to the Legislature and the public.

6 (d) Any costs incurred by the Controller and the Director of
7 Finance in connection with the administration of the Safe
8 Neighborhoods and Schools Fund, including the costs of the
9 calculation required by Section 7599.1 and the audit required by
10 subdivision (c), as determined by the Director of Finance, shall be
11 deducted from the Safe Neighborhoods and Schools Fund before
12 the funds are disbursed pursuant to subdivision (a).

13 (e) The funding established pursuant to this act shall be used to
14 expand programs for public school pupils in kindergarten and
15 grades 1 to 12, inclusive, victims of crime, and mental health and
16 substance abuse treatment and diversion programs for people in
17 the criminal justice system. These funds shall not be used to
18 supplant existing state or local funds utilized for these purposes.

19 (f) Local agencies shall not be obligated to provide programs
20 or levels of service described in this chapter above the level for
21 which funding has been provided.

22 *SEC. 3. Section 11352 of the Health and Safety Code is*
23 *amended to read:*

24 11352. (a) Except as otherwise provided in this division, every
25 person who transports, imports into this state, sells, furnishes,
26 administers, or gives away, or offers to transport, import into this
27 state, sell, furnish, administer, or give away, or attempts to import
28 into this state or transport (1) any controlled substance specified
29 in subdivision (b), (c), or (e), or paragraph (1) of subdivision (f)
30 of Section 11054, specified in paragraph (14), (15), or (20) of
31 subdivision (d) of Section 11054, or specified in subdivision (b)
32 or (c) of Section 11055, or specified in subdivision (h) of Section
33 11056, or (2) any controlled substance classified in Schedule III,
34 IV, or V which is a narcotic drug, unless upon the written
35 prescription of a physician, dentist, podiatrist, or veterinarian
36 licensed to practice in this state, shall be punished by imprisonment
37 pursuant to subdivision (h) of Section 1170 of the Penal Code for
38 three, four, or five years.

39 (b) *Notwithstanding subdivision (a), a person who sells,*
40 *furnishes, administers, or gives away any mixture of controlled*

1 substances containing fentanyl or its analogs, knowing fentanyl
2 or its analogs to be present within the mixture, unbeknownst to
3 the purchaser or recipient, and without disclosing that presence
4 to the purchaser or recipient shall be punished by imprisonment
5 pursuant to subdivision (h) of Section 1170 of the Penal Code for
6 a term of four, five, or six years.

7 ~~(b)~~

8 (c) Notwithstanding the penalty provisions of subdivision (a),
9 any person who transports any controlled substances specified in
10 subdivision (a) within this state from one county to another
11 noncontiguous county shall be punished by imprisonment pursuant
12 to subdivision (h) of Section 1170 of the Penal Code for three, six,
13 or nine years.

14 ~~(e)~~

15 (d) For purposes of this section, “transports” means to transport
16 for sale.

17 ~~(d)~~

18 (e) This section does not preclude or limit the prosecution of
19 an individual for aiding and abetting the commission of, or
20 conspiring to commit, or acting as an accessory to, any act
21 prohibited by this section.

22 SEC. 4. Section 11369 is added to the Health and Safety Code,
23 to read:

24 11369. (a) This section shall be known, and may be cited, as
25 Alexandra’s Law.

26 (b) The court shall advise a person who is convicted of, or who
27 pleads guilty or no contest to, a violation of Section 11351 or
28 11352 for transporting, importing, selling, or administering a
29 controlled substance, offering to transport, import, sell, or
30 administer a controlled substance, or attempting to transport,
31 import, sell, or administer a controlled substance, or Section
32 11379.6, where the substance contained fentanyl or a fentanyl
33 analog, of the following:

34 “You are hereby advised that all illicit drugs and counterfeit
35 pills are dangerous to human life and become even deadlier when
36 they are, sometimes unknowingly, mixed with substances such as
37 fentanyl and analogs of fentanyl. People can and have died from
38 these substances, even in very small doses. It is extremely
39 dangerous and deadly to human life to sell or administer drugs,
40 in any form, when not lawfully authorized to do so. If you do so

1 *in the future and a person dies as a result of that action, and you*
2 *knew or should have known that the substance you provided*
3 *contained fentanyl or a fentanyl analog, you may be charged with*
4 *homicide, up to and including the crime of murder, within the*
5 *meaning of Section 187 of the Penal Code. In addition, this*
6 *conviction will be considered by a judge or jury as to whether you*
7 *knew or should have known that the substance you provided to the*
8 *decedent contained fentanyl.”*

9 *The court shall additionally read the advisory statement in a*
10 *case in which the person exchanged a controlled substance*
11 *containing fentanyl or its analogs for anything else of value except*
12 *when the controlled substance containing fentanyl or its analogs*
13 *is exchanged for a controlled substance or alcohol.*

14 *(c) The advisory statement shall be included in a plea form, if*
15 *used, or the fact that the advisory was given shall be specified on*
16 *the record.*

17 *(d) The fact that the advisory was given shall be recorded in*
18 *the abstract of the conviction.*

19 *(e) This advisement may not be used as evidence in the*
20 *prosecution of a minor in juvenile court.*

21 *SEC. 5. Section 487 of the Penal Code is amended to read:*

22 *487. Grand theft is theft committed in any of the following*
23 *cases:*

24 *(a) When the money, labor, real property, or personal property*
25 *taken is of a value exceeding nine hundred fifty dollars (\$950),*
26 *except as provided in subdivision (b).*

27 *(b) Notwithstanding subdivision (a), grand theft is committed*
28 *in any of the following cases:*

29 *(1) (A) When domestic fowls, avocados, olives, citrus or*
30 *deciduous fruits, other fruits, vegetables, nuts, artichokes, or other*
31 *farm crops are taken of a value exceeding two hundred fifty dollars*
32 *(\$250).*

33 *(B) For the purposes of establishing that the value of domestic*
34 *fowls, avocados, olives, citrus or deciduous fruits, other fruits,*
35 *vegetables, nuts, artichokes, or other farm crops under this*
36 *paragraph exceeds two hundred fifty dollars (\$250), that value*
37 *may be shown by the presentation of credible evidence which*
38 *establishes that on the day of the theft domestic fowls, avocados,*
39 *olives, citrus or deciduous fruits, other fruits, vegetables, nuts,*

1 artichokes, or other farm crops of the same variety and weight
2 exceeded two hundred fifty dollars (\$250) in wholesale value.

3 (2) When fish, shellfish, mollusks, crustaceans, kelp, algae, or
4 other aquacultural products are taken from a commercial or
5 research operation which is producing that product, of a value
6 exceeding two hundred fifty dollars (\$250).

7 (3) Where the money, labor, real property, or personal property
8 is taken by a servant, agent, or employee from their principal or
9 employer and aggregates nine hundred fifty dollars (\$950) or more
10 in any 12 consecutive month period.

11 (c) When the property is taken from the person of another.

12 (d) When the property taken is any of the following:

13 (1) An automobile.

14 (2) A firearm.

15 ~~(e) If the value of the money, labor, real property, or personal~~
16 ~~property taken exceeds nine hundred fifty dollars (\$950) over the~~
17 ~~course of distinct but related acts, the value of the money, labor,~~
18 ~~real property, or personal property taken may properly be~~
19 ~~aggregated to charge a count of grand theft, if the acts are motivated~~
20 ~~by one intention, one general impulse, and one plan.~~

21 SEC. 6. Section 490.3 is added to the Penal Code, to read:

22 490.3. Notwithstanding any other law, in any case involving
23 one or more acts of theft or shoplifting, including, but not limited
24 to, violations of Sections 459.5, 484, 488, and 490.2, when the acts
25 occurred within three years of each other, the value of the money,
26 labor, real property, or personal property taken or merchandise
27 stolen may be aggregated in a single count or charge, with the
28 sum of the value of all money, labor, property, or merchandise
29 being the value considered in determining the degree of theft.
30 Aggregation may only be applied to theft or shoplifting offenses
31 for which a conviction has not occurred.

32 SEC. 7. Section 666.1 is added to the Penal Code, to read:

33 666.1. (a) (1) Notwithstanding any other law, a person is
34 punishable by imprisonment in the county jail not exceeding one
35 year or pursuant to subdivision (h) of Section 1170 if they meet
36 all of the following:

37 (A) The person has two or more prior convictions for any of the
38 offenses listed in paragraph (3) and those convictions occurred
39 within three years of the current offense.

40 (B) The current conviction is petty theft or shoplifting.

1 (C) The value of the property taken, unlawfully received, or that
2 otherwise provided the basis for conviction in each of the offenses
3 is above the amount described in Section 490.1.

4 (2) A person who has previously been sentenced pursuant to
5 paragraph (1) and who is within three years subsequently convicted
6 of petty theft or shoplifting is punishable pursuant to subdivision
7 (h) of Section 1170.

8 (3) This section applies to the following offenses, including a
9 conviction that occurred before the effective date of this section:

10 (A) Petty theft, as described in Section 488 or 490.2.

11 (B) Grand theft, as described in Section 487, 487h, and in
12 Chapter 5 (commencing with Section 484) of Title 13.

13 (C) Theft from an elder or dependent adult, as described in
14 Section 368.

15 (D) The theft or unauthorized use of a vehicle, as described in
16 Section 10851 of the Vehicle Code.

17 (E) Burglary, as described in Section 459.

18 (F) Carjacking, as described in Section 215.

19 (G) Robbery, as described in Section 211.

20 (H) Receiving stolen property, as described in Section 496.

21 (I) Shoplifting, as described in Section 459.5.

22 (J) Identity theft and mail theft, as described in Section 530.5.

23 (b) A person subject to charging under this section or actually
24 charged under this section may be referred by a prosecuting
25 attorney's office or by a county probation department to a theft
26 diversion or deferred entry of judgment program pursuant to
27 Section 1001.81. If appropriate, a person admitted to such a
28 program may also be referred to a substance abuse treatment
29 program.

30 (c) Upon an arrest of a person for petty theft or shoplifting, who
31 has two or more prior convictions within the past three years for
32 any of the offenses listed in paragraph (3) of subdivision (a), prior
33 to release the court shall make an individualized determination of
34 risk to public safety and likelihood to return to court. The court
35 shall make the determination within 48 hours of detention and
36 may do so through remote proceedings.

37 (d) This section shall not be construed to preclude prosecution
38 or punishment pursuant to any other law.

39 SEC. 8. If any provision of this act, or any part of any
40 provision, or the application of any provision or part to any person

1 or circumstance is for any reason held to be invalid or
2 unconstitutional, the remaining provisions and applications of
3 provisions shall not be affected, but shall remain in full force and
4 effect, and to this end the provisions of this act are severable.

5 SEC. 9. (a) In the event that this act and another initiative
6 measure or measures relating to the same subject, including by
7 making any changes to laws enacted or amended by Proposition
8 47, appear on the same statewide ballot, all of the provisions of
9 the other measure or measures shall be deemed to be in conflict
10 with this measure. In the event this measure receives a greater
11 number of affirmative votes than a measure deemed to be in conflict
12 with it, the provisions of this measure shall prevail in their entirety,
13 and the provisions of the other measure or measures shall be null
14 and void.

15 (b) If this measure is approved by voters but superseded by law
16 by any other conflicting measure approved by the voters at the
17 same election, and the conflicting ballot measure is later held
18 invalid, this measure shall be self-executing and given full force
19 and effect.

20 SEC. 10. (a) Sections 2, 5, 6, and 7 of this act amend the Safe
21 Neighborhoods and Schools Act, Proposition 47, an initiative
22 statute enacted by the voters at the November 8, 2014, statewide
23 general election, and shall become effective only when submitted
24 to and approved by the voters at a statewide election.

25 (b) A special election is hereby called, to be held throughout
26 the state on November 5, 2024, for approval by the voters of
27 Sections 1 to 9, inclusive, of this act, which shall become effective
28 only when submitted to and approved by the voters at the statewide
29 election. The special election shall be consolidated with the
30 statewide general election to be held on that date. The consolidated
31 election shall be held and conducted in all respects as if there were
32 only one election, and only one form of ballot shall be used.

33 (c) Notwithstanding the requirements of Sections 9040, 9043,
34 9044, 9061, 9082, and 9094 of the Elections Code, or any other
35 law, the Secretary of State shall submit Sections 1 to 9, inclusive,
36 of this act to the voters for their approval at the November 5, 2024,
37 statewide general election.

38 SEC. 11. This act calls an election within the meaning of Article
39 IV of the California Constitution and shall go into immediate effect.

1 SECTION 1. ~~Section 13899 of the Penal Code is amended to~~
2 ~~read:~~

3 ~~13899. The Department of the California Highway Patrol shall,~~
4 ~~in coordination with the Department of Justice, convene a regional~~
5 ~~property crimes task force to assist local law enforcement in~~
6 ~~counties identified by the Department of the California Highway~~
7 ~~Patrol as having elevated levels of property crime, including, but~~
8 ~~not limited to, organized retail theft, sale of stolen goods, vehicle~~
9 ~~burglary, and theft of vehicle parts and accessories. The task force~~
10 ~~shall provide local law enforcement in the identified region with~~
11 ~~logistical support and other law enforcement resources, including,~~
12 ~~but not limited to, personnel and equipment, as determined to be~~
13 ~~appropriate by the Commissioner of the California Highway Patrol~~
14 ~~in consultation with task force members.~~